HILCHOT SHABBAT

Sun, Fire & Reheating on Shabbat: Hilchot Shabbat

Given Thursday 19 February 2026 · מלאכת בישול — Siman 318, Seifim 3–4

Overview of Siman 318

- **Seifim 1–2** (covered previously): General rules regarding the status of a melachah performed on Shabbat — whether one may benefit from the result, including cases of pikuach nefesh. These are written in the context of bishul but apply to all melachot.
- **Seifim 3–19**: Bishul proper — the specific laws of cooking on Shabbat.

Seif ג (Gimmel): Toldot Ha'Or, Cooking in the Sun, and Toldot HaChamah

Source Gemara (Shabbat 38b–39a)

Mishna (38b):

אין נותנין ביצה בצד המיחם בשביל שתתגלגל — You may not place a raw egg next to a hot kettle/urn so that it cooks.

ולא יטמיננה בחול ובאבק דרכים בשביל שתצלה — You may not bury the egg in sand or road dust so that it roasts.

Gemara:

איבעיא להו: גלגל מאי? — If one did place the egg next to the urn, what is the din?

Answer: חייב חטאת — It is a Torah-level prohibition (chayav chatat).

Rav Nachman's Framework

Rav Nachman establishes the following framework:

1. **Cooking in the sun itself (בחמה)** — Everyone agrees this is **mutar** (permitted).
2. **Cooking with fire (באור)** — This is the core melachah of bishul; clearly **asur min haTorah**.
3. **Toldot ha'or (תולדות האור)** — Cooking by something heated by fire (e.g., a pot removed from the fire = כלי ראשון). Everyone agrees this is **asur min haTorah**, exactly like fire itself. There is no distinction between an av melachah and a toldah regarding chiyuv chatat.
4. **Toldot hachamah (תולדות החמה)** — Cooking by something heated by the sun (e.g., a cloth or rooftop heated by the sun). This is the **machloket**:

- **Chachamim**: Asur — a gezeirah lest one confuse it with toldot ha'or.
- **Rabbi Yose**: Mutar — since the sun itself is mutar, its derivatives should also be mutar.
- **Halachah follows the Chachamim**: Toldot hachamah is **asur miderabanan**.

The Paradox

You **may** cook directly in the sun, but you **may not** cook in something heated by the sun. The reason: an observer seeing food cooked by a sun-heated surface might think it was cooked by fire (toldot ha'or), leading to confusion.

Why Is the Sun Permitted?

Although the sun is literally a ball of fire, it does not have the halachic status of "fire" (אור). In the Mishkan, the melachah of bishul was performed with regular fire, not solar heat. The sun is a fundamentally different category. Therefore, cooking directly in sunlight is not included in the melachah at all.

Shulchan Aruch — Seif Gimmel

כשם שאסור לבשל באור כך אסור לבשל בתולדות האור — Just as it is forbidden to cook with fire, so too it is forbidden to cook with something heated by fire (toldot ha'or / kli rishon).

Examples given:

- Placing a raw egg next to a hot pot (כגון ליתן ביצה בצד קדרה)
- Breaking an egg onto a cloth heated by fire (לשברה על סודר שחם באור)

These are all asur min haTorah.

ואפילו בתולדות חמה כגון בסודר שחם בחמה — Even toldot hachamah (e.g., a cloth heated by the sun) is **asur miderabanan**, as a gezeirah because of toldot ha'or.

וכן אסור להטמינה בחול או באבק דרכים שחמו מכח חמה — Similarly, burying an egg in sand or road dust heated by the sun is asur.

אבל בחמה עצמה כגון ליתן ביצה בחמה או ליתן מים בחמה כדי שיחמו — מותר — But placing an egg or water directly in the sun to heat up is **mutar**.

Yad Soledet Bo — The Threshold of "Hot"

- The halachic definition of heat sufficient for cooking: **יד סולדת בו** — hot enough to scald a hand.
- **Practical threshold**: From approximately **45°C (113°F)** and above, one must treat it as potentially capable of cooking, and it is forbidden.
- For leniencies, some poskim require higher temperatures (70–80°C). Further details discussed later in the siman.
- Application: A pot removed from the fire that has cooled below 45°C is no longer considered yad soledet bo, and placing food near it is not an issue of bishul.

Note on Burying an Egg in Sand (Hatmanah)

- Burying an egg in hot sand is forbidden even from **erev Shabbat**, as it may involve the prohibition of **hatmanah** (insulation) — specifically, insulation בדבר המוסיף הבל (in something that adds heat). To be discussed further in hilchot hatmanah.

Practical Application #1: Dud Shemesh (Solar Boiler)

A **dud shemesh** is a water heater that uses solar energy (not electricity or gas) to heat water, common in Israel.

The Question: If the gas element is off before Shabbat and only the sun is heating the water, may one open the hot water tap on Shabbat? When hot water exits, cold water is drawn into the tank and is then heated by the existing sun-heated water. This cold water is being heated by **toldot hachamah** — which is asur miderabanan.

The Halachah — Mutar (according to Sefardi poskim: Chacham Ben-Tzion Abba Shaul, Chacham Ovadia Yosef, Chacham Mordechai Eliyahu; and many Ashkenazi poskim as well).

Reasons it is permitted (cumulative):

1. **Pesik resha b'derabanan** — Opening the tap is intended to use hot water; drawing in cold water is an unintended but inevitable consequence. Since toldot hachamah is only derabanan, this is a pesik resha on a derabanan.

- Halachah: Pesik resha b'derabanan is mutar when it is d'lo nicha lei (you don't want the result).

1. **Melachah she'einah tzrichah l'gufah** — You don't need or want the new water to reach yad soledet bo; you just want warm water, not scalding hot. Therefore, the "cooking" of the new water is a melachah she'einah tzrichah l'gufah.
2. **Grama (indirect causation)** — The cold water doesn't boil immediately upon opening the tap; it trickles in and heats gradually. This is an indirect, delayed process. Pesik resha b'grama is mutar.
3. **D'lo nicha lei** — Chacham Ovadia argues you may not even want or need additional hot water, making this pesik resha d'lo nicha lei (though this depends on family size and usage).
4. **Hot into cold / cold into hot** — Not all opinions hold that cold water entering hot water constitutes bishul. (This will be discussed in detail in Seif 12.)
5. **Tzitz Eliezer's additional argument** — Rav Eliezer Waldenberg argues that the incoming cold water is primarily heated directly by the sun (through the copper pipes), not merely by the pre-heated water, making it chamah itself (mutar).

Important caveats regarding dud shemesh usage:

- A person may **not** take a full-body hot bath on Shabbat, even from water heated before Shabbat (gezeirah of the Chachamim). This applies to mikveh discussions as well.
- According to most opinions, one may **not** wash hands, feet, or face with water heated **on Shabbat** itself (even by the sun).
- Therefore, the primary permitted use of the dud shemesh on Shabbat is for **washing dishes, hot water bottles**, etc. — not for personal bathing (per Chacham Ben-Tzion; Chacham Ovadia likely agrees).
- Using an **electrical boiler** on Shabbat is asur for various reasons (discussed separately).

Practical Application #2: Cooking in a Microwave on Shabbat

The Question: A microwave uses electromagnetic waves, not fire. What is its halachic status?

Rashi's comment on the Gemara (בחמה דכולי עלמא לא פליגי דשרי):

> The reason cooking in the sun is permitted is because "it is not the normal — דאין דרך בישול בכך — way of cooking."

Two interpretations:

Interpretation	Held By	Implication for Microwave
The sun is mutar **because** it's not the normal way of cooking. Any normal cooking method, even without fire, would be asur de'oraita.	**Rav Moshe Feinstein**	Microwave cooking = **asur de'oraita** (since microwaves are a common, normal way to cook)
Rashi is just explaining why the sun wasn't included in the gezeirah despite being actual fire. The real point is: no fire = no de'oraita.	**Shemirat Shabbat KeHilchatah; Rav Ovadia Yosef**	Microwave cooking = **asur miderabanan** only (no fire involved)

Practical difference (Rav Ovadia): If one must cook for a choleh (ill person) on Shabbat and has a choice between a fire/stove and a microwave, it is preferable to use the microwave (since it may only be derabanan).

Bottom line: Cooking in a microwave on Shabbat is certainly asur — both for electricity and for bishul — but whether the bishul component is de'oraita or miderabanan is debated.

Practical Application #3: Food Cooked in the Sun — Can It Be Placed on a Hotplate?

The Question (raised by the Pri Megadim): If one cooked an egg fully in the sun (which is mutar), may one then place it on a hotplate (heated by fire) to cook it further?

Arguments:

- **In favor (mutar):** The principle of אין בישול אחר בישול (no cooking after cooking) should apply — the egg is already fully cooked. The fact that it was cooked in the sun doesn't make it "uncooked."
- **Against (asur):** Perhaps since the sun isn't halachically "fire," the cooking done by the sun doesn't count, and placing it on fire would be a first act of "real" cooking.

Halachah: The poskim rule it is **mutar**. Cooking in the sun is genuinely called "cooking" (bishul) in reality — it just isn't the type of fire the Torah prohibited. Since the food is actually fully cooked (mevushal kol tzorcho), placing it on the hotplate involves no further bishul. The food must be **fully cooked** (not just partially) before placing it on the fire.

Seif ד (Daled): Bishul Achar Bishul — Cooking After Cooking

This is one of the largest and most important seifim in all of Hilchot Bishul. Multiple major machlokot Rishonim are addressed.

Machloket #1: Cooking from Half-Cooked to Fully Cooked

The Question: If food was cooked to the level of ma'achal Ben Drosai (partially cooked, edible in extenuating circumstances) before Shabbat but not fully cooked, may one continue cooking it on Shabbat (e.g., place it on a hotplate)?

What Is Ma'achal Ben Drosai?

- **Ben Drosai** was a highwayman who ate his food only partially cooked because he was always on the road.
- **Ma'achal Ben Drosai** = food that is edible in a pinch, but not the comfortable or normal way of eating.
- **How much cooking is that?**
- **Rashi / Shulchan Aruch (Siman 254):** Half cooked (חצי בישולו).
- **Other Rishonim:** One-third cooked (שליש בישולו) — used leniently for derabanan matters like shehiyah and bishul akum.

Everyone agrees: Cooking food from raw to ma'achal Ben Drosai on Shabbat is chayav chatat / chayav sekilah — an issur de'oraita.

Three Opinions Among the Rishonim

Opinion	Held By	Ruling
Mutar — Once food is edible (ma'achal Ben Drosai), further cooking is not "bishul."	Rabbeinu Asher (Rosh), Ramban, Rabbeinu Yonah, Ran, Meiri	Ein bo bishul — permitted
Asur miderabanan — It's not Torah-level bishul but rabbinically prohibited.	Rashba	Middle position
Asur min haTorah — Further cooking from half to fully cooked is a Torah violation.	Rambam (inferred by Beis Yosef)	Chayav from the Torah

Rambam's language:

מבשל על האור דבר שמבושל כל צרכו או דבר שאין בו בישול כלל — פטור

The Beis Yosef infers: Only if it's **fully cooked** (מבושל כל צרכו) is there no chiyuv. Implication: if it's not fully cooked and you cook it further, you **are** chayav.

Shulchan Aruch's Ruling

אם לא נתבשל כל צרכו, אפילו נתבשל כמאכל בן דרוסאי — שייך בו בישול

If food has not been fully cooked — even if it has reached ma'achal Ben Drosai — it is still subject to bishul. The Shulchan Aruch rules like the **Rambam**.

Mishnah Berurah (s.k. 27): This is bishul **min haTorah**.

והוא הדין יותר עד שיגמור בישולו שייך בו בישול מן התורה

Sha'ar HaTziyun: The Gra also rules like the Rambam — it is de'oraita.

Even if the food is still hot — e.g., one heated it to half-cooked moments before Shabbat and it's still warm — placing it on the hotplate on Shabbat is still asur.

Be'dieved (After the Fact)

Mishnah Berurah (s.k. 27): If a Jew did take half-cooked food and finished cooking it on Shabbat, the food is **not asur** to eat. Since this is a machloket Rishonim (many major Rishonim permit it), be'dieved one may rely on the lenient opinions.

What About Placing Half-Cooked Food Before Shabbat?

- Placing half-cooked (or even raw) food on a **hotplate** (without a dial) **before Shabbat** is a question of **shehiyah**, not bishul — since no melachah is being done on Shabbat itself.
- **Chacham Ovadia's ruling:** A hotplate without a temperature dial has no issue of shehiyah, so one may place even raw food on it before Shabbat.

Machloket #2: Bishul Achar Bishul with Liquids — אין בישול אחר בישול

The Principle: אין בישול אחר בישול — There is no cooking after cooking. If food was **fully cooked** before Shabbat, reheating it on Shabbat does not constitute bishul.

The Question: Does this principle apply equally to solids and liquids?

The Machloket

Opinion	Held By	Ruling
No distinction — אין בישול אחר בישול applies to both solids and liquids, even if fully cooled.	Rambam, Rashba, Ran	Reheating cold liquid = mutar
Distinction — אין בישול אחר בישול applies only to solids. Liquids that have cooled are subject to further bishul.	Rosh (inferred from Rashi), Rabbeinu Yonah, Tur	Reheating cold liquid = asur min haTorah

Source for the Rosh's Distinction

Rashi, in two places, implies that reheating cooled liquid is bishul:

1. Regarding **hatmanah**: Rashi says the reason for the gezeirah is שמא ימצא קדרתו צוננת ויבא לבשל — "lest he find his pot cold and come to cook it." The Rosh asks: if it's already cooked, why is there a concern of "cooking"? It must be that reheating cooled liquid is indeed bishul.
2. Regarding **stirring**: Rashi again implies further bishul applies.

The Sevara (Logic) Behind the Distinction

- **Solids:** Heat application does two things: (1) changes food from inedible to edible (primary effect), and (2) makes it hot (secondary effect). Once cooled, the primary change (inedible → edible) remains. Therefore, reheating is not "cooking."
- **Liquids:** Water/liquid is drinkable before heating. The **primary** reason for heating liquid is to make it hot. Once cooled, that primary purpose is lost. Therefore, reheating is a new act of "cooking."

Shulchan Aruch's Ruling

תבשיל שנתבשל כל צרכו — יש בו משום בישול אם נצטנן — A fully cooked dish is subject to bishul if it has cooled down.

והני מילי... בתבשיל שיש בו מרק — This applies to a dish that has liquid.

אבל דבר שנתבשל כבר והוא יבש — מותר לשרותו בחמין בשבת — But a dry, fully cooked item may be soaked in hot water on Shabbat.

The Shulchan Aruch rules like the Rosh: Liquids that have cooled are subject to further bishul; solids are not.

Biur Halachah notes: The Rambam, Rashba, and Ran all disagree and hold אין בישול אחר בישול even for liquids. The Gra does not decisively rule between the positions.

Summary of the Shulchan Aruch's Rulings Across Both Machlokos

Issue	Shulchan Aruch Rules Like	Ruling
Cooking from half-cooked to fully cooked	Rambam (against the Rosh)	Asur — bishul min haTorah
Bishul achar bishul with cooled liquids	Rosh (against the Rambam)	Asur — yesh bishul achar bishul for liquids

In both cases, the Shulchan Aruch rules strictly (l'chumra).

Be'dieved for Liquids

Same principle as above: If someone reheated a cooled liquid on Shabbat (e.g., placed cooled water back on a hotplate), the water is **mutar to drink**, since this is a machloket Rishonim and be'dieved one may rely on the lenient view.

What Counts as "Liquid" vs. "Solid"?

This is a critical practical question, as many dishes are a combination.

Clear cases:

- **Liquid:** Water, soup (even with solid pieces — it's fundamentally a liquid dish).
- **Solid:** Schnitzel, dry chicken, etc.

The grey area: Fish with sauce, chicken with gravy, cholent with some liquid, etc.

The Machloket

Opinion	Held By	Standard
Go by **majority** — if the majority is solid, treat it as solid. Based on Rabbeinu Yerucham: תבשיל שיש בו **רוב** רוטב (a dish with a **majority** of liquid).	Chacham Ovadia Yosef	A dish that is fundamentally "a solid dish" with some sauce = solid = mutar to reheat
Any liquid makes it subject to bishul achar bishul for the liquid component. He claims the correct reading in Rabbeinu Yerucham is שיש **בו** רוטב (not רוב), matching the Shulchan Aruch's language: תבשיל שיש בו מרק.	Chacham Ben-Tzion Abba Shaul	Even a small amount of liquid = asur

Practical guideline (the Rav's formulation): Ask: "What is this dish called? Is it a solid dish or a liquid dish?" Fish with a bit of teriyaki sauce = a solid dish (mutar). Soup with chunks of chicken = a liquid dish (asur).

Congealed Liquids

If the liquid/sauce has **congealed** in the fridge (become solid due to cold), it is currently a solid and may be placed on the hotplate. This is true even according to Chacham Ben-Tzion, since at the moment of placement it is physically solid.

Note on Mitztamek V'Yafeh Lo (Improving Already-Cooked Food)

Question raised in class: If something is fully cooked, isn't there a concern that further heating "improves" it, making it asur?

Answer: Two separate concepts must be distinguished:

1. **Bishul (the melachah):** Once food is **mevushal kol tzorcho** (fully cooked), there is **no further bishul** even if the food improves with more heat. This is the principle of אין בישול אחר בישול for solids.
2. **Shehiyah (leaving food on the fire):** There is an opinion among the Rishonim that even fully cooked food, if it is **mitztamek v'yafeh lo** (it improves by remaining on the fire), has a shehiyah concern (that one might stoke the coals). This requires a blech / covered fire (geruf v'katum) — but this is a shehiyah issue, not a bishul issue.

Bottom line: For the melachah of bishul itself, once fully cooked, further cooking is permitted (for solids). Shehiyah, hazarah, and hatmanah are separate discussions with their own rules.

Preview of Next Week

Topics still to be covered in Seif Daled:

- The **Rama's view** (Ashkenazi position) — a compromise between the Rambam and Rosh regarding liquids.
- Pouring from a **kli rishon**, rules of **kli sheni**, **kli shlishi**.
- **Kalei ha-bishul** — things that are easily cooked.
- Pouring from a kli sheni.

- Cross-community questions (Ashkenazi asking Sefardi to reheat, etc.).

Key Halachic Summary Table

Scenario	Status	Source
Cooking with fire on Shabbat	Asur min haTorah	Av melachah
Cooking with toldot ha'or (kli rishon off the fire)	Asur min haTorah	Toldah — same as fire
Cooking directly in the sun	Mutar	Not the "fire" of the Mishkan
Cooking with toldot hachamah (object heated by sun)	Asur miderabanan	Gezeirah — lest one confuse with toldot ha'or
Using a dud shemesh (drawing in cold water)	Mutar (Sefardi poskim)	Multiple combined leniencies
Cooking in a microwave	Asur; de'oraita or miderabanan debated	Machloket Rav Moshe vs. Rav Ovadia
Sun-cooked food placed on hotplate	Mutar (if fully cooked)	Ein bishul achar bishul applies
Half-cooked food placed on hotplate on Shabbat	Asur min haTorah	Shulchan Aruch like Rambam
Fully-cooked solid, cooled, reheated on Shabbat	Mutar	Ein bishul achar bishul (all agree for solids)
Fully-cooked liquid, cooled, reheated on Shabbat	Asur (Shulchan Aruch like Rosh)	Yesh bishul achar bishul for liquids
Mixed dish (solid with some liquid)	Depends on majority/nature of dish	Machloket Chacham Ovadia vs. Chacham Ben-Tzion
Congealed sauce/liquid from fridge	Mutar to place on hotplate	Currently solid

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